

Engineering, Procurement and Construction Agreement

This Agreement is made on 26 September 2026 between Client Name (“Owner”) and Ocean RCS (“Contractor”) for the Project at the Site in Camden, New Jersey. The Parties agree as follows:

1. Definitions

- 1.1 “Agreement” means this Engineering, Procurement and Construction Agreement, including its exhibits.
- 1.2 “Project” means the rooftop solar and battery energy storage system described in Exhibit A.
- 1.3 “Substantial Completion” means the date on which the Project is mechanically complete, energized and accepted under Section 8.

2. Scope of work

- 2.1 Contractor shall design, procure, construct, test and commission the Project in accordance with the Specifications, Applicable Law and Prudent Industry Practice.
- 2.2 Owner shall provide access to the Site, existing drawings and utility account information reasonably required by Contractor.

3. Contract price

- 3.1 Owner shall pay Contractor the Contract Price set out in Exhibit B, subject only to adjustment by a Change Order executed by both Parties.
- 3.2 Payments are due within thirty (30) days of an undisputed invoice issued under the Exhibit C milestones.

4. Schedule

- 4.1 Contractor shall achieve Substantial Completion within one hundred (100) days after Notice to Proceed, subject to Excusable Delay.



IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.



OWNER

CONTRACTOR · OCEAN RCS

Signature

Name: Client Name

Title:

Date:

Signature

Name: Firstname Lastname

Title:

Date: